

OFFICE OF THE SECRETARY

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June 25, 2019

The Honorable David De Alba
Judge of the Superior Court
County of Sacramento
3341 Power Inn Road, Dept. 129
Sacramento, CA 95826

Re: Christopher W. Kinney
CDCR No: T72977
Case No: 02F03682
Date of Sentence: November 8, 2002

Dear Honorable David De Alba:

The purpose of this letter is to provide the court with the authority to resentence inmate Christopher W. Kinney, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

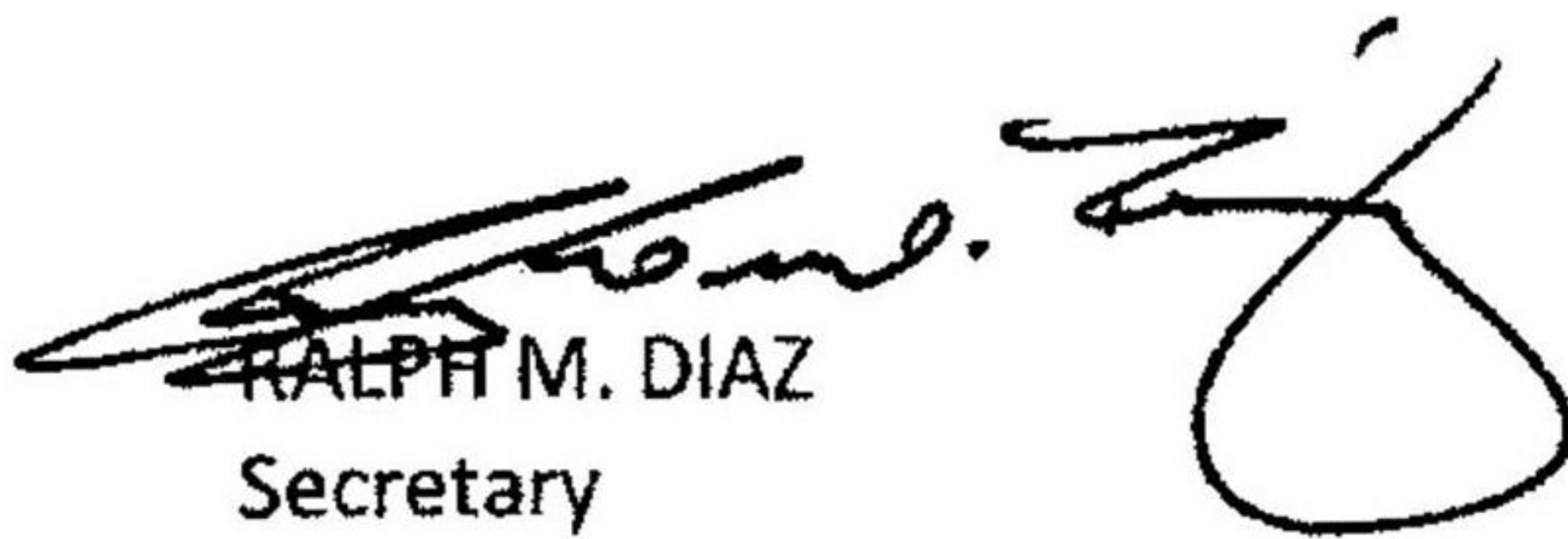
Inmate Kinney has taken full advantage of rehabilitation opportunities to successfully transition back into society. Although, inmate Kinney is currently unassigned from an official work assignment, he is assigned to and actively participates in Substance Abuse Recovery (Narcotics Anonymous) and Veterans Support Groups. Since being received by CDCR back on November 21, 2002, inmate Kinney has received only one Rules Violation Report. He is commended for remaining disciplinary free since December of 2007. Further, Inmate Kinney has been required to submit to a total of six random urinalysis tests during this period of incarceration, all of which have returned reflecting negative for use of controlled substances.

The Honorable David De Alba

Page 2

Having reviewed the enclosed documentation it appears that inmate Kinney's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Sacramento County District Attorney's Office
Sacramento County Public Defender's Office